

Tentative Rulings for September 11, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2505934	MAIORANO VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL PLAINTIFF SHERYL L. MAIORANO'S DEPOSITION

Tentative Ruling:

The motion is moot (except as to the issue of sanctions) because the parties agreed to move forward with Plaintiff's deposition on September 2, 2026.

Under California Rules of Court, rule 3.1348, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348.) Plaintiff argues imposing sanctions would be unjust because the matter has been resolved. However, the evidence provided by both parties indicates that after Plaintiff failed to appear for her noticed deposition, she failed to provide any new deposition dates until this motion was filed. It should not have taken Defendant noticing this motion for Plaintiff to cooperate. Plaintiff has failed to set forth any facts that make awarding sanctions unjust and/or that she acted with substantial justification. **The court awards sanctions in favor of Defendant and against Plaintiff in a reasonable amount of \$1,060 (4 hours x \$250 + \$60).**

If a timely request for oral argument is made by no later than 4:30 p.m. on September 10, 2026, oral argument will be heard on September 11, 2026 at 10:00 a.m. (not 8:30 a.m.).